



CHAPTER 66.

An Act to amend the Law as to the erection of buildings and the making and improvement of streets in connection with the reconstruction of areas, streets, and buildings recently damaged or destroyed in Dublin, and for other purposes incidental thereto. A.D. 1916.

[22nd December 1916.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where the right honourable the lord mayor, aldermen, and burgesses of Dublin (in this Act referred to as "the corporation") require to purchase land under the Public Health (Ireland) Acts, 1878 to 1907, for the purpose of widening, opening, enlarging or otherwise improving streets, in the city of Dublin in connection with the reconstruction of areas, streets, houses or buildings destroyed or damaged in the course of the recent disturbances, they may be authorised to purchase the land compulsorily by means of an order submitted to the Local Government Board and confirmed in accordance with the schedule to this Act. Acquisition and substitution of land compulsorily for the purpose of street improvements.

(2) Any such order may for the purpose of enabling the corporation to widen an existing street authorise the corporation to compulsorily acquire any lands (hereinafter called "the acquired lands") more remote from such street than the premises actually fronting upon the street, and such order may provide that when the acquisition of the acquired lands is completed, the respective interests in the lands (hereinafter called "the intervening lands") situate between the street and the acquired lands shall cease to attach to the same and shall instead attach to the lands (including the necessary portions of the acquired lands) exactly corresponding in area, lay out, and situation with relation to the new frontage of the widened street

A.D. 1916. — and any street intersecting or intersected by the same. Such last-mentioned lands are hereinafter called "the substituted lands."

(3) As from the coming into operation of the said order with reference to the respective interests in the intervening lands, every grant, conveyance, and assurance relating to any portion of the intervening lands and every interest, legal and equitable, in the same shall affect the corresponding portion of the substituted lands as if such portion were the land originally dealt with in such grant, conveyance, or assurance, or affected by such interest. The order shall be registered in the proper office for the registration of deeds or titles, as the case requires, in such manner as may be prescribed.

(4) The procedure under this section for the compulsory purchase of land shall be substituted for the procedure for the compulsory purchase of land under section two hundred and three of the Public Health (Ireland) Act, 1878.

41 & 42 Vict.
c. 52.

Preservation
of amenity.

2.—(1) A person who proposes to erect a new building on the site of a building which has been damaged or destroyed in the course of the recent disturbances or to reconstruct or alter a building which has been damaged as aforesaid (in this section referred to as "the building owner") shall, in addition to any plans and sections of the proposed work which are required by the byelaws of the corporation to be delivered at the office of the town clerk, deliver at the same time and place elevations on the same scale as that of the plans and sections and shall furnish to the city architect, if and when so requested by him, any detailed drawings or other particulars which the city architect may consider reasonably necessary for the further explanation of the documents delivered.

(2) If it appears to the city architect, having regard to the nature and situation of the site of the proposed new building, or of the building proposed to be restored or altered, or the external design of any buildings erected or in the course of erection in the neighbourhood of that site, that the character of the proposed new building, restoration, or alteration is such as would be injurious to the amenity of the street which the front of the proposed new building or the building proposed to be restored or altered faces, whether on account of the proposed external design, the proposed line of frontage, or the materials proposed to be used in the external walls facing that street or in any portion of the building which will be visible from that street, he may require such reasonable alterations to be made as respects the design, line of frontage, and materials as he thinks proper, and may require the plans, sections, and elevations to be amended accordingly. The front of a building at the corner of two streets shall be deemed to face each street for the purposes of this provision.

(3) A requirement of the city architect under this section shall not have effect unless notice thereof in writing is delivered

or sent by post to the building owner within one month after the day on which the plans, sections, and elevations are delivered as aforesaid, or within fourteen days after the day on which the further particulars (if any) are furnished as aforesaid, whichever period expires later. A.D. 1916.

(4) If any dispute or difference arises as to the reasonableness of any requirement of the city architect under this section the matter in dispute shall be settled by arbitration between the corporation and the building owner, and the corporation shall appoint the city architect or a person nominated by him to be arbitrator on their behalf, and the building owner shall appoint an arbitrator on his behalf, and section two hundred and seventeen of the Public Health (Ireland) Act, 1878, shall apply with respect to the arbitration as it applies with respect to arbitrations under that Act, subject to the following modifications :

- (a) The reference to the Local Government Board shall be construed as a reference to the Lord Lieutenant ;
- (b) Any reference to that Act shall be construed as a reference to this Act ;
- (c) In considering the reasonableness of any requirement, the arbitrators or umpire may take into account the expenses which would be incurred in complying with the same and a requirement that any material or materials shall be supplied from any specified source of supply shall be deemed to be unreasonable ;
- (d) The arbitrators or umpire shall have power to make such modifications of any requirement of the city architect as seem proper, and the requirement as so modified shall be deemed to be a requirement of the city architect under this section ;
- (e) The powers of the arbitrators and umpire as to the costs shall include a power to direct to and by whom and in what manner the costs (including solicitor and client costs) or any part thereof are to be paid ;
- (f) The appointment of an arbitrator on behalf of the corporation may be made by any committee of the corporation to which that power is delegated and need not be under seal.

(5) Subject to the provisions of the last preceding subsection a requirement of the city architect under this section shall be enforceable under the Public Health (Ireland) Acts, 1878 to 1907, in the same manner as if it were a proper requirement contained in byelaws of the corporation relating to buildings, as if the notice of the requirement were a notice of disapproval of the proposed work given by the corporation in pursuance of the byelaws, and as if the execution of the work, otherwise than in accordance with the requirement, were an offence against

A.D. 1916. those byelaws, and its continuance in such a form and state as to be in contravention of the requirement were a continuing offence.

(6) Anything to be done or omitted in relation to any building in order to comply with a requirement of the city architect under this section may be done or omitted notwithstanding any covenant, condition or provision to the contrary in any lease, mortgage, or other instrument affecting the building or the land on which it is erected, and the act or omission shall be deemed not to be a breach, non-performance, or contravention of any such covenant, condition, or provision.

(7) Where a requirement of the city architect under this section necessitates an alteration of the former frontage line the provisions of section thirty-nine of the Public Health (Ireland) Act, 1878, as to compensation shall apply in like manner as if the new frontage line had been prescribed by the corporation under that section.

(8) The corporation may on the recommendation of the city architect relax or waive any byelaw of the corporation relating to buildings where and so far as such relaxation or waiver is necessary in order to enable a joint plan of reconstruction to be carried out in relation to two or more buildings subject to the consent of the owners of these buildings, but, save as aforesaid, the provisions of this section shall be in addition to and not in derogation of any byelaws of the corporation relating to buildings

Loans in aid
of expenses of
reconstruction.

3.—(1) Subject to the provisions of this section the corporation may advance money on the security of the ownership of the site of any house or building which has been damaged or destroyed in the course of the recent disturbances for the purpose of enabling the house or building to be rebuilt or restored in such manner as will comply with the requirements of any existing byelaws of the corporation and any requirements of the city architect under this Act.

(2) The advance shall not exceed the difference between the amount which the Local Government Board certify to be the total cost of rebuilding or restoring the house or building in such manner as aforesaid and the amount of the compensation granted out of public moneys in respect of the destruction or damage of or to the house or building, and no advance shall be made unless such compensation has been granted and unless the Local Government Board certify that the advance is necessary for the purpose aforesaid.

(3) The advance shall be repayable within such period, with interest at such rate and by such instalments or otherwise as may be agreed upon subject to the sanction of the Local Government Board, but the rate of interest shall not be more than ten shillings above the rate at which the corporation can at the date of the advance borrow money for the purpose from

the Commissioners of Public Works in Ireland and the term of repayment shall be a term six months less than the term for which the corporation can so borrow, unless a shorter term is agreed on: Provided that in the case of an advance in several sums successively the foregoing provisions as to the term of repayment and as to the rate of interest shall have effect as respects each sum advanced as if it were a separate advance: A.D. 1916.

Provided also, that the balance of any such advance outstanding at any time may be repaid by the borrower on giving six months' notice in writing to the corporation.

(4) Subject to the provisions of section four of this Act the repayment of the advance and interest as aforesaid shall be secured by a mortgage of the site of the house or building in such form as may be approved by the Local Government Board. The mortgage may contain provisions for authorising the advance to be made in several sums successively as the works of rebuilding or restoration proceed, and for ensuring that the advance will be applied in defraying the expenses of those works and such other provisions as the Board deem necessary, and no money shall be advanced unless and until the Board certify that they are satisfied that the value of the estate or interest assured by the mortgage is sufficient security for the repayment of the advance and that the title to the estate or interest so assured is one which an ordinary mortgagee would be willing to accept.

(5) The corporation may exercise all the powers and remedies for recovery of the principal money and interest which are expressed in the mortgage or implied therein by law.

(6) An application for an advance in accordance with the provisions of this section shall not be refused, except where and so far as the corporation cannot borrow money for the purpose from the Commissioners of Public Works in Ireland.

(7) In this section the expression "ownership" in relation to the site of a house or building means such interest or combination of interests as constitutes an estate in fee simple or fee farm in possession or a leasehold interest in possession under a lease for lives or years renewable for ever or a lease for a term of at least ninety years unexpired at the date of the mortgage.

4.—(1) Where a person desirous of obtaining an advance under the last preceding section is not in a position to secure the repayment of the advance in accordance with the provisions of that section owing to defective title or the insufficiency of his interest in the site or of the value of that interest and the other persons whose concurrence is necessary in order to remedy or remove the defect or insufficiency are unable or unwilling to concur in securing the advance he may apply to the Land Judge for an order charging the ownership of the site and any interest therein with the repayment of the advance and interest. Loans secured
by charging
order.

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(2) On any such application the Land Judge may direct such inquiries and investigations as he thinks proper for the purpose of ascertaining the title to the ownership of the site and the values of the several interests therein, and if after giving to all persons interested an opportunity of being heard it appears to him that the advance would enure to the benefit of other interests besides the interest of the applicant, and that all those interests afford together sufficient security for the advance he may make an order charging all such interests and each of them with the repayment of the advance and interest, and may by the same or any other order apportion the advance, interest, and instalments as between the several interests charged in proportion to the benefit accruing from the advance to the owners of those interests respectively.

(3) Subject to the limitations imposed by the last preceding section the amount of the advance, the rate of interest, and the term and method of repayment shall be at the discretion of the Land Judge.

(4) Provision may be made by the charging order for ensuring that the advance will be applied in defraying the expenses of the works of rebuilding or restoration and for any other matters for which, in the opinion of the Land Judge, provision ought to be made.

(5) A charging order shall be effectual to charge each interest expressed to be charged with the repayment to the corporation of the advance and interest in manner therein provided as a first charge in priority to all charges and incumbrances thereon.

(6) Where the Land Judge makes an apportionment order he may, if he thinks fit, declare that the whole of the principal money, interest, and instalments for the time being payable under the charging order shall, in the first instance, be paid by and recoverable from the owners for the time being of any interest in the site which he may specify, and may provide for contribution and adjustment of rights and liabilities as between the several interests charged and the several owners thereof for the time being in such manner as appears to him to be equitable.

(7) The Land Judge shall have power to apportion the liability for any charge or incumbrance which affects any other lands or interests as well as the interest charged or proposed to be charged under this section, and to provide for such contribution as between the lands and interests liable, and such adjustments of rights and liabilities (including indemnities) in relation to the common liability as appear to him to be equitable.

(8) The Land Judge shall have power to ascertain in such manner as he thinks proper what easements and rights (if any) affect or are attached to any site or interest charged or proposed to be charged under this section and to define all or any of

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those easements and rights, and to hear and finally determine all questions and claims that may arise with respect to any of the easements or rights, or any actual or anticipated infringement or violation of the same and to stay proceedings in any other court in relation to any such infringement or violation.

(9) For the purposes of this section the Land Judge, in addition to his powers and jurisdiction as Land Judge, shall have and may exercise all such powers and jurisdiction as are vested in or exercisable by the High Court or any division, court, or judge thereof, under any enactments or rules which are applied for the purposes aforesaid by rules made under this section.

(10) The Land Judge may review, rescind, or vary any order made under this section, but no such order shall be subject to appeal and no proceedings before the Land Judge under this section shall be removed into or restrained or questioned by any court.

(11) The Judicial Commissioner or any other judge of the Supreme Court who may be nominated in that behalf by the Lord Chancellor and so consents may, during the absence of the Land Judge through illness or any other cause, act as Land Judge for the purposes of this section, and whilst so acting shall have and may exercise all the powers and jurisdiction of the Land Judge for those purposes.

Arrangements may be made between the Land Judge and the Judicial Commissioner for the performance by officers of the Land Commission in cases of urgency of any duties under this section which may be directed by the Land Judge, and those duties shall be performed by those officers accordingly.

(12) The Land Judge may make rules for carrying the foregoing provisions of this section into effect, and may by any such rules regulate the practice and procedure under this section (including costs), and for that purpose may adapt any enactments or rules regulating practice and procedure in the High Court or any division or court thereof.

(13) For enforcing a charging order made under this section the corporation, in addition to any other powers and remedies in that behalf, shall have and may exercise all the powers and remedies which are conferred on mortgagees by the Conveyancing Acts, 1881 to 1911; and those Acts shall apply accordingly in like manner as if the order were a mortgage made by deed.

(14) It shall be the duty of the corporation to cause each charging order to be registered forthwith in a special register to be kept for the purpose in the Registry of Deeds. The special register shall be kept and registration therein shall be effected in such manner as may be prescribed by regulations made by the Land Judge, and the registration of an order in accordance with those regulations shall be in substitution for registration

A.D. 1916 — under any enactments relating to registration, and the order and the charge thereby created shall be exempt from the provisions of any such enactments accordingly.

The regulations may—

- (a) provide for the register being open for inspection at all reasonable times, and for the issue of certificates as to orders registered, and as to entries with respect to any specified land or interest;
- (b) prescribe (subject to the approval of the Treasury) the fees which may be charged for inspection or for certificates, and the method in which fees are to be applied and accounted for;
- (c) provide for any other matters in respect of which, in the opinion of the Land Judge, provision ought to be made.

Acquisition of
derelict pre-
mises by the
corporation.

5.—(1) At any time after the expiration of two years from the passing of this Act, if it appears to the Local Government Board, on the application of the corporation, that the rebuilding or restoration of a house or building destroyed or damaged in the course of the recent disturbances has not been commenced or, although commenced, has been discontinued, the Board may, unless they are satisfied that the rebuilding or restoration will be completed within a reasonable time, make an order authorising the corporation to acquire the site thereof.

(2) Applications under this section shall be made in such manner and after publication and service of such notices as may be prescribed, and before making an order the Board shall consider any objections which may be made thereto by any persons interested in the site.

(3) When an order is made under this section the corporation shall have power to acquire the site specified in the order under the Public Health (Ireland) Acts, 1878 to 1907, as amended by this Act, in like manner as if it were land required for the purpose of improving a street, and may sell, let, or otherwise dispose of the same when acquired in such manner and on such conditions as may be sanctioned by the Local Government Board, including conditions for securing the erection of suitable buildings on the site: Provided that it shall be the duty of the corporation, on the expiration of two years from the acquisition of the site by them, to erect thereon suitable buildings if they have not in the meantime sold, let, or otherwise disposed of the site as aforesaid.

Valuation of
injured
premises.

6. No hereditament or tenement upon which was built any building or house destroyed, nor any such building or house when rebuilt, shall be liable to be valued under the Irish Valuation Acts at a sum larger than the valuation in force on the first day of April, nineteen hundred and sixteen, for a period of twelve years from the passing of this Act.

7. No building or house destroyed, nor the land on which the same stood, shall be assessed or liable to any local rate from the twenty-fourth day of April, nineteen hundred and sixteen, until the expiration of one year from the rebuilding of the said house or building.

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Temporary exemption from rates of injured premises.

8. In the case of any public-house, hotel, or other licensed premises, which have been destroyed or damaged in the recent disturbances, and in which business has in consequence been suspended during the period of rebuilding or restoration, the licence (for the purposes of renewal and any certificates required for renewal but for no other purpose), shall be deemed to continue in force up to the time of the completion of such rebuilding or restoration, and to be vested in the person legally entitled to the said premises, and it shall be competent for such person to apply for any justices' certificate required for renewal, and for the court to consider such application, although the same may not be made to the annual licensing petty sessions. Any certificate as to the conduct of the business, required for the purposes of renewal, shall be a certificate as respects the conduct of the business during the period between the date of the last renewal and the destruction of or damage to the premises, and the Licensing (Ireland) Acts, 1833 to 1902, shall be deemed to be amended accordingly.

Provisions as to licences.

9. Where a building destroyed or damaged as aforesaid is held under a lease for a term of years of which the residue unexpired on the twenty-fourth day of April, nineteen hundred and sixteen, was more than five and less than thirty-one years, section five of the Town Tenants (Ireland) Act, 1906 (which relates to compensation for unreasonable disturbance), shall apply to the building when rebuilt or restored in like manner as it applies to a building held under a lease made after the passing of that Act for a term of less than thirty-one years.

Extension of 6 Edw. 7. c. 54. s. 5.

10.—(1) The expenses of the corporation in the execution of this Act shall be defrayed out of the rate or fund applicable to the purposes of the Public Health (Ireland) Acts, 1878 to 1907, and the corporation may borrow for any of the purposes of this Act in like manner as they may borrow for the purposes of those Acts, but money so borrowed shall not be reckoned as part of the debt of the corporation within the meaning of the limitation on borrowing imposed by subsection (2) of section two hundred and thirty-eight of the Public Health (Ireland) Act, 1878.

Expenses and borrowing, &c.

(2) The Commissioners of Public Works in Ireland may lend money to the corporation for any of the purposes of this Act in like manner as they may lend money for the purposes of the Public Health (Ireland) Acts, 1878 to 1907.

(3) The validity of the proceedings of the corporation in the execution of this Act shall not be questioned on the ground

A.D. 1916. solely that the requirements of any standing order of the corporation have not been complied with.

(4) Where a loan is made to the corporation for the purposes of this Act—

- (a) The loan shall be made at the minimum rate for loans out of the Local Loans Fund at the time of the advance;
- (b) The loan may be made for such period not exceeding eighty years as may be sanctioned by the Local Government Board, and the periods in sections two hundred and thirty-eight and two hundred and forty-six, respectively, of the Public Health (Ireland) Act, 1878, shall be extended accordingly;
- (c) Any balance of any such loan outstanding at any time may be repaid by the corporation on giving six months' notice in writing to the lenders of the same;
- (d) The extension of the period of repayment shall not be a ground for increasing the rate of interest.

Interpreta-
tion and
general.

11.—(1) In this Act, unless the context otherwise requires,—
the expression “Land Judge” means the Land Judge of the Chancery Division of the High Court;
the expression “Judicial Commissioner” means the Judicial Commissioner of the Land Commission;
the expression “Local Government Board” means the Local Government Board for Ireland;
the expression “prescribed” means prescribed by the Local Government Board;
the expression “site” includes buildings and other structures on, in, or under the surface; and
the expression “buildings” includes houses.

61 & 62 Vict.
c. 37.

(2) Article 32 of the Schedule to the Local Government (Application of Enactments) Order, 1898, so far as it relates to local inquiries shall apply for the purposes of this Act as it applies for the purposes of the Local Government (Ireland) Act, 1898.

(3) It is hereby declared that nothing in this Act affects any land, estate, interest, or right vested in His Majesty, or vested in any public officer or body in trust for the public service or public purposes.

Short title.

12. This Act may be cited as the Dublin Reconstruction (Emergency Provisions) Act, 1916.

SCHEDULE.

A.D. 1916.

Section 1 (1).

PROVISIONS AS TO THE COMPULSORY ACQUISITION OF LAND BY THE CORPORATION.

1. The corporation where they propose to purchase or substitute land compulsorily under this Act may submit to the Board an order authorising the corporation to put in force as respects the land specified in the order the provisions of the Lands Clauses Acts with respect to the purchase and taking of land otherwise than by agreement and the provisions of this Act with respect to substitution, as the case requires.

2. An order under this schedule shall be of no force unless and until it is confirmed by the Board, and the Board may confirm the order either without modification or subject to such modifications as they think fit, and an order when so confirmed on the expiration of one month from the publication of notice of confirmation shall, save as otherwise expressly provided by this schedule, become final and have effect as if enacted in this Act; and the confirmation by the Board shall be conclusive evidence that the requirements of this Act have been complied with, and that the order has been duly made, and is within the powers of this Act.

3. The order shall be in the prescribed form, and shall contain such provisions as the Board may prescribe for the purpose of carrying the order into effect, and shall incorporate, subject to the necessary adaptations, the Lands Clauses Acts as defined in this schedule.

4. On the submission of the order to the Board notice of the order shall be published by the corporation in the prescribed manner, and such notice shall be given both in the locality in which the land is proposed to be acquired or substituted, and to the owners, lessees, and occupiers of that land as may be prescribed.

5. If within one month after the publication of the notice of the order no objection to the order has been presented to the Board by a person interested in the land, or if every such objection has been withdrawn, the Board may, without further inquiry, confirm the order, but if such an objection has been presented, and has not been withdrawn, the Board shall forthwith direct a local inquiry as to the propriety of confirming the order, and the corporation and all persons interested in the land and such other persons as the person holding the inquiry in his discretion thinks fit to allow shall be permitted to appear and be heard at the inquiry. Before confirming the order the Board shall consider the report of the person who held the inquiry and all objections made thereat.

6. On confirming an order the Board shall forthwith publish notice of the confirmation, and if within one month after such publication a petition against the order is received by the Board signed by not less than six persons interested in the land then (unless the petition is withdrawn within the prescribed period) the order shall be provisional only and shall not have effect unless confirmed by Parliament.

A certificate by the Board that no such petition has been so received, or that every petition so received has been withdrawn, as the case may be, and that the order has taken effect shall be conclusive evidence of the facts certified.

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7. The arbitrator appointed for the purpose of settling compensation shall, in addition to his powers under the Acts incorporated in the order, have power—

(a) to state his award or any part thereof in the form of a special case for the opinion of the High Court on a question of law under section eight of the Common Law Procedure Amendment Act (Ireland), 1856, and, on the application of the corporation.

(b) to order works to be executed by the corporation for the accommodation of adjoining lands or buildings either instead of or in addition to the payment of compensation.

8. In determining the amount of compensation payable to any person interested in the land, the arbitrator shall have regard to the extent to which any adjoining or neighbouring land or hereditaments in which the same person is also interested may be benefited by the improvements to be made by the corporation on or in connection with the land taken or any adjoining or neighbouring land.

9. In construing for the purposes of this schedule or any order made thereunder, any enactment incorporated with the order, this Act, together with the order, when duly confirmed, shall be deemed to be the special Act or the confirming Act as the case requires, the due confirmation of the order to be the passing of the confirming Act, the Board to be the confirming authority, and the corporation to be the promoters of the undertaking, the company, local authority, or district council as the case requires.

10. In this schedule the expression "Board" means the Local Government Board, and the expression "Lands Clauses Acts" means the Lands Clauses Acts as amended by section eight of the Public Health (Ireland) Act, 1896 :

Provided that in the application of the Second Schedule to the Housing of the Working Classes Act, 1890, so much of Article 26 of that Schedule as (a) limits the right of appeal to cases where the compensation or price exceeds one thousand pounds and (b) requires that leave to appeal shall be obtained from the High Court, shall not have effect.

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